

response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

**12. 9:00 AM CASE NUMBER: L26-00496
CASE NAME: GVD RENOVATIONS, INC. VS. DOES 1-25
HEARING ON DEMURRER TO: ANSWER
FILED BY: GVD RENOVATIONS, INC.
*TENTATIVE RULING:***

The amended complaint and amended cross complaint have alleged damages of over \$35,000, and have indicated that this case is an unlimited civil matter.

This case will be reclassified as unlimited civil.

Partie are to pay proper filing fees, after which the Court Clerk's Office will assign the matter to the unlimited civil department.

**13. 9:00 AM CASE NUMBER: L26-00496
CASE NAME: GVD RENOVATIONS, INC. VS. DOES 1-25
HEARING ON DEMURRER TO: CROSS COMPLAINT
FILED BY: GVD RENOVATIONS, INC.
*TENTATIVE RULING:***

he amended complaint and amended cross complaint have alleged damages of over \$35,000, and

have indicated that this case is an unlimited civil matter.

This case will be reclassified as unlimited civil.

Parties are to pay proper filing fees, after which the Court Clerk's Office will assign the matter to the unlimited civil department.

14. 9:00 AM CASE NUMBER: L26-01450
CASE NAME: BANK OF AMERICA N.A. VS. AMY NILSON
***HEARING ON MOTION IN RE: TO DISMISS COMPLAINT**
FILED BY: NILSON, AMY

TENTATIVE RULING:

Defendant filed a Demurrer to the Complaint, on 6/2/26, arguing, under Section 430.10(e) of the CCP, that the Complaint fails to state a cause of action because the debt at issue has been "charged off" by the Plaintiff.

The Demurrer is unopposed and there is proof of mail service of the Demurrer to Plaintiff.

The proof of service of summons in this case, filed on 3/19/26, reflects substitute service on 3/18/26.

Background

Defendant provides evidence of credit reports reflecting that Plaintiff purportedly "charged off" the debt at issue in this matter.

The Defendant argues that this shows the debt no longer exists and, as a result, there is no longer a claim against her.

Analysis

First, the deadline for a defendant to file a demurrer is 30 days from the receipt of the summons. (CCP 430.40). Defendant is well past that deadline with her demurrer.

Second, even assuming, arguendo, that her demurrer is timely, Defendant provides no authority for her claim. That her debt may have been "charged off" does not imply the debt no longer exists. She provides no evidence to support this other than a purported from the website of a credit reporting company and her own conjecture.

Disposition

Defendant's Demurrer is overruled.

Court to file the Order.

15. 9:00 AM CASE NUMBER: N26-1199
CASE NAME: TODD TEMPLETON VS. CALIFORNIA DEPARTMENT OF MOTOR VEHICLES
HEARING IN RE: PETITION FOR WRIT OF MANDATE